



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Mark Christensen, Planner II
Subject: UDC-21-00046: Mission Village Annexation Zoning Map Amendment
Date: March 8, 2021

Background:

The item for consideration is a **Zoning Map Amendment**. This is approved by **Ordinance**.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 3/8/2021
- Public Services Committee 3/16/2021
- Second Reading 3/22/2021
- Public Services Committee 4/6/2021
- Third and Final Reading 4/12/2021

Planning Commission Recommendation:

The Planning Commission heard this item at their March 1, 2021 meeting and by a **vote of 4-0** (2 absent), recommended the Governing Body approve the proposed zoning map amendment.

The Planning Commission Staff report is attached and is unchanged.

Attachments:

1. Ordinance
2. Planning Commission Staff Report
3. Applicant Submitted Documents
4. Citizen Comment

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM COUNTY MR (MEDIUM-DENSITY RESIDENTIAL) TO MR (MEDIUM-DENSITY RESIDENTIAL) FOR PROPERTY GENERALLY LOCATED NORTH OF DELL RANGE BOULEVARD AND EAST OF GRIFFITH AVENUE."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner of the property described herein has applied for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on March 1, 2021, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as a portion of the Southwest ¼ of the Southeast ¼ of Section 22, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, more particularly described as follows: Beginning at the Northeast Corner of Lot 1, Block 1, Northwoods Community Church Subdivision, from which the Southeast Comer of Section 22 bears S.67° 52' 54" E., a distance of 1785.50 feet; thence S.89° 35' 44" E., along the south line of Park Estates, 3rd Filing, a distance of 293.79 feet to the west line of Park Plaza Tech Center, Replat of Tracts 2 and 3; thence S.00° 11' 49" E., along said west line, a distance of 30.00 feet to the north line of that parcel recorded in Book 2522, Page 616; thence N.89° 37' 18"W., along said north line, a distance of 293.64 feet to the east line Lot 1, Block I, Northwoods Community Church Subdivision thence N.00° 29' 12" W., along said east line, a distance of 30.14 feet to the Point of Beginning, Laramie County, Wyoming is hereby changed to MR Medium-Density Residential.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication, and the recording of the annexation encompassing the area described in Section 4 with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____



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(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE PLANNING COMMISSION

3/1/2021

STAFF REPORT

FILE: UDC-21-00046: Mission Village Zoning Map Amendment

REQUEST: A request to rezone 8,831 square feet of unplatted land from County MR (Medium-Density Residential) District to MR (Medium-Density Residential) District

LOCATION: East of Griffith Avenue and North of Dell Range Boulevard

APPLICANT: Casey Palma, Steil Surveying Services

OWNER: The Commonwealth Companies

ZONING: County MR (Medium-Density Residential) District

PURPOSE: To give a City zone district to a piece of land being annexed for the purpose of being used for access

PREPARED BY: Mark Christensen, Planner II



RECOMMENDED MOTION:

Move to **approve** the rezoning of 8,831 square feet of unplatted land from County MR (Medium-Density Residential) District to MR (Medium-Density Residential) District, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- PlanCheyenne

BACKGROUND:

The applicant is requesting rezoning of 8,831 square feet of land to MR (Medium-density Residential) District for an annexation for site access. The County Assessor presently shows the tract of land as 1 parcel. The land is presently vacant.

The subject property is unplatted land.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential	MR (County)	Vacant
North	Urban Residential	MR	Residential
South	Urban Residential	MR	Vacant/Multi-Family
East	Urban Residential	MUB	Community Assembly
West	Urban Residential	MR	Community Assembly

The property is currently zoned County MR (Medium-Density Residential) District. The MR district is intended for a mix of density and dwelling types within a neighborhood. All uses require full access to public infrastructure and city services. The regulations are designed to protect the neighborhood character of the district and protect the primarily residential use of land.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d a detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

The future land use designation for the subject property is Urban Residential. This future land use designation was updated with the *Connect 2045* Transportation Master Plan. The most appropriate zone for the Urban Residential designation is LR, **MR**, HR, NR-1, NR-2, and NR-3. The zoning map amendment fulfills the following development policies and physical patterns in the Comprehensive Plan:

- **Policy 1.4.A. Infill Opportunities:** The zoning map amendment will facilitate the use of an existing lot for new development and provide an infill opportunity. The zone change and annexation will bring the lot into the City and permit access to the Mission Village project.
- **Policy 1.2.C: County Enclave:** The annexation and zoning map amendment will remove a county enclave from within City limits.

Through the policies addressed in *PlanCheyenne*, the proposed zone change for the subject property from County MR to MR **complies** with review criteria 1.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

The application is compatible with nearby property zoning and future land use designations. The subject property is situated within an Urban Residential neighborhood that is zoned MR. The proposed zone change simply requests changing the zoning designation for the property from County MR to City MR.

The proposed zone change for the subject property from County MR to MR **complies** with review criteria 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The existing lot is proposed to be used for access to the Mission Village housing development. The subject property is surrounded by MR zoning and is being used as access for a property that is zoned MR, leading to the MR zone being the most suitable district for the subject property.

The proposed zone change for the subject property from County MR to MR **complies** with review criteria 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

The subject property is not anticipated to be platted at this time as it is being used for access; therefore, the subject property will not need to meet the standards of Article 4 at this time. Should the lot be platted in the future, staff does not anticipate any issues with the subject property meeting the standards of Article 4.

The proposed zone change for the subject property from County MR to MR **complies** with review criteria 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The application supports the intent and applicability of the MR zone by providing access to City infrastructure and public services.

The proposed zone change for the subject property from County MR to MR **complies** with review criteria 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The subject property is well suited to meet all applicable standards of the MR district should the current proposed development not be executed. The MR zone will be cohesive with the surrounding neighborhood.

The proposed zone change for the subject property from County MR to MR **complies** with review criteria 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

The Planning and Development Department received the following review and recommendations from other reviewing agencies:

- **Planning and Development**
 - Please remove the statement dedicating ROW. **Corrected**

The project was not sent out for review as it is a zone change accompanying an annexation that was warranted by the conditions on the Conditional Use Approval, which was reviewed by all typical reviewing agencies.

The proposed zone change for the subject property from County MR to MR **complies** with review criteria 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property from County MR to MR **complies** with review criteria 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

The application conforms to PlanCheyenne per the discussion with Review Criterion 1.

STAFF REVIEW:

The application is consistent with the surrounding MR Zone. As noted before, the property is being annexed to serve as access to the Mission Village senior housing development. The MR zone is consistent with the surrounding property and the annexation will remove a County enclave. Staff is supportive of the zoning map amendment.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d) The application facilitates access to a proposed development, is complimentary to the surrounding neighborhood, and is compatible with the existing MR zone district to the north, south, and west. The zone change meets the review criteria of UDC 2.2.1.(d); therefore, staff recommends approval of the zoning map amendment as submitted by the applicant.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

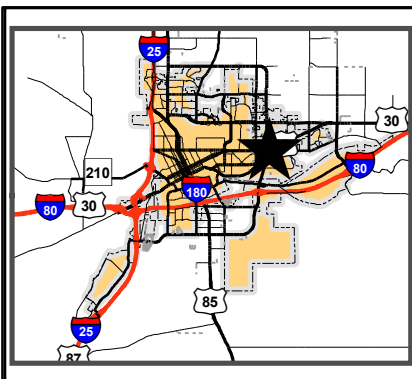
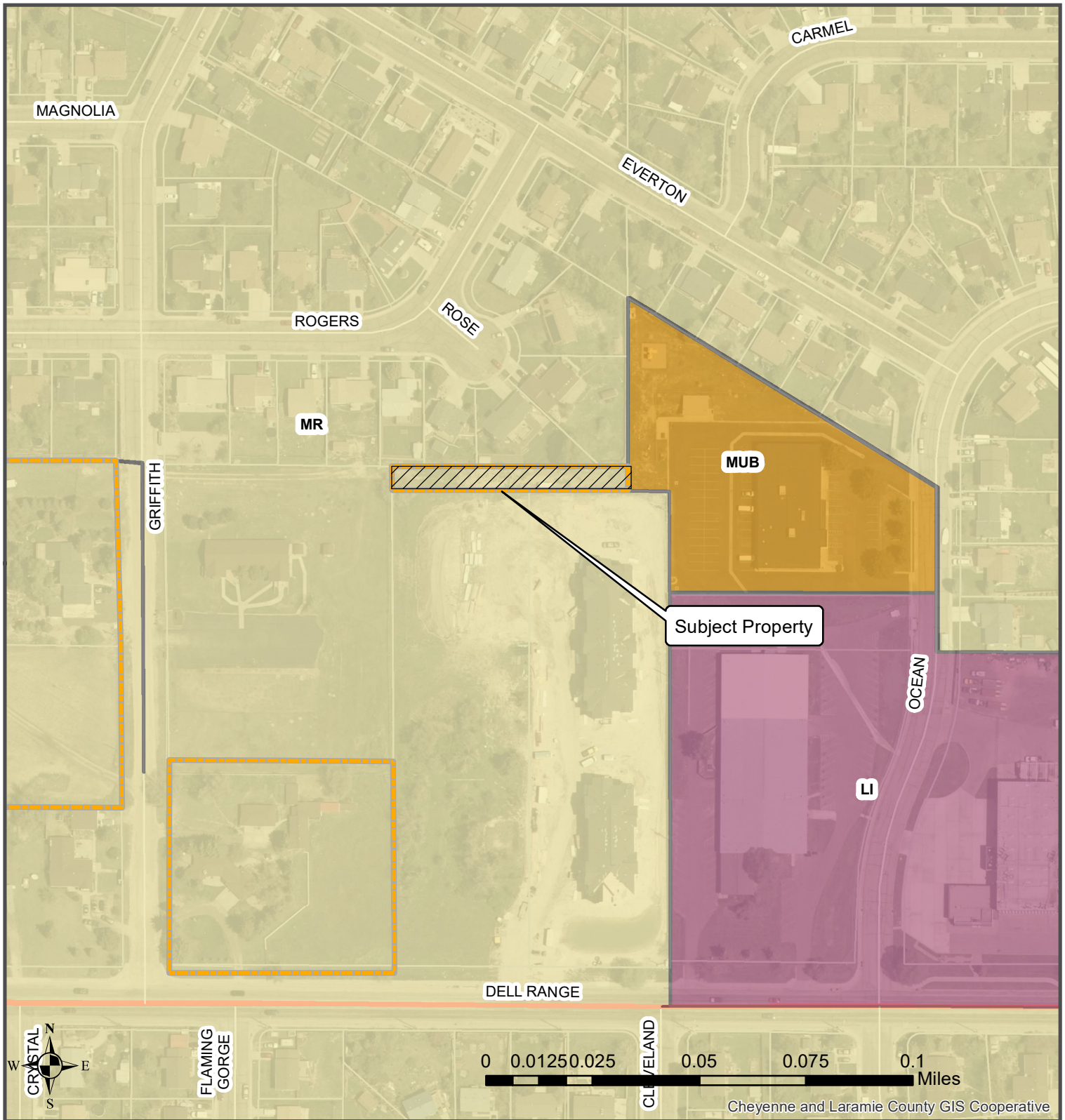
In the event that the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from County MR (Medium-Density Residential) District to MR (Medium-density Residential) District.

ATTACHMENTS:

1. Zoning Map
2. Land Use Plan Map
3. Submitted Application
4. Applicant-submitted zoning map

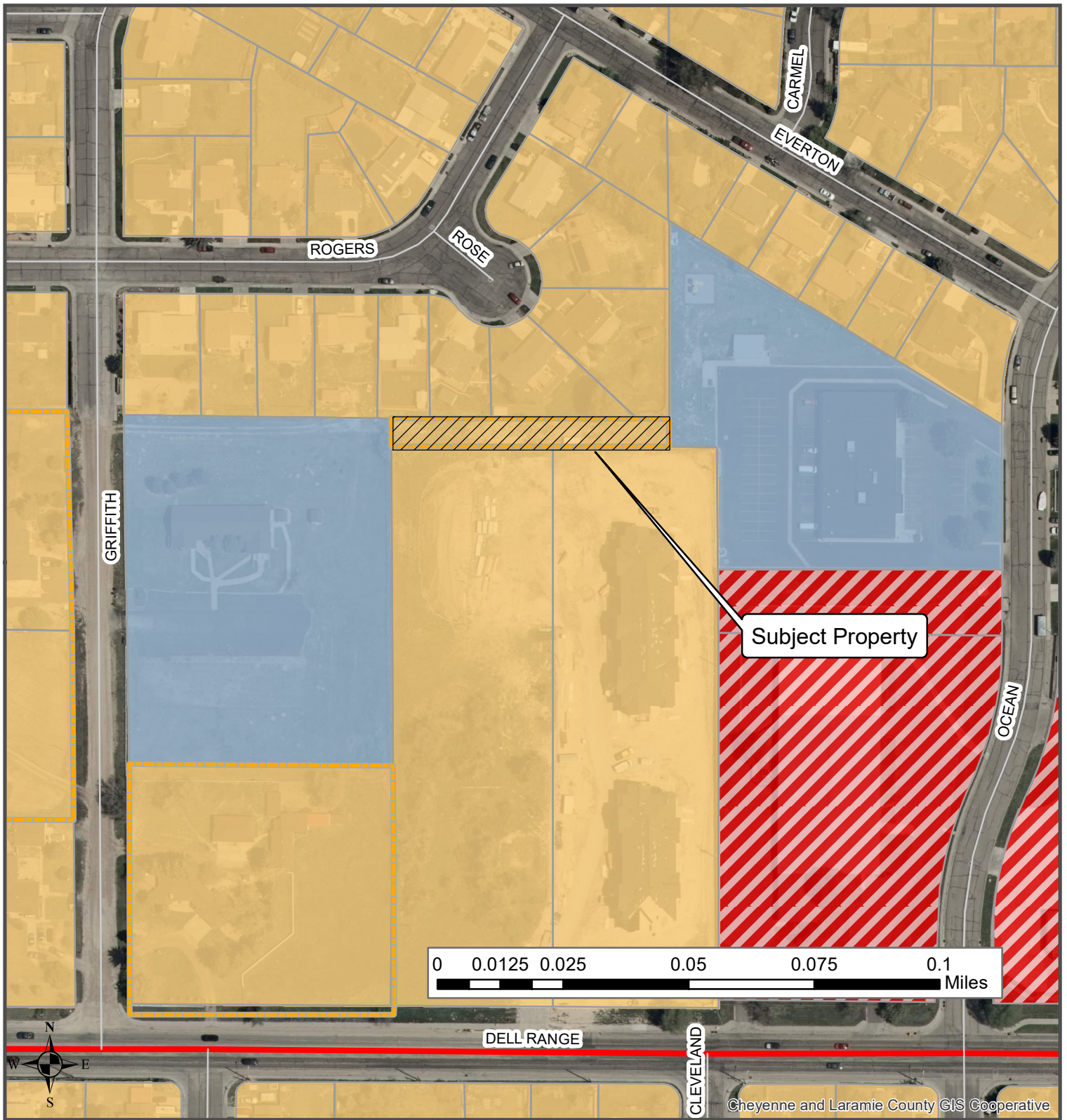


Attachment 1: Zoning Map UDC-21-00046

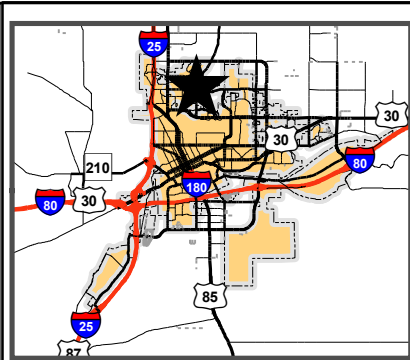
This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	A-1 / Agricultural and Rural Residential
Interstate	A-2 / Agricultural
Principal Arterial	AG / City Agricultural
Minor Arterial	MUR / Mixed Use Residential Emphasis
Major Collector	CBD / Central Business District
Minor Collector	CB / Community Business
Local	NB / Neighborhood Business
Private	MU / Mixed Use - County
Platted not built	MUB / Mixed Use Business Emphasis
HR / High Density Residential	MUE / Mixed Use Employment Emphasis
MR / Medium Density Residential	HI / Heavy Industrial
LR / Low Density Residential	LI / Light Industrial
NR-2 / Neighborhood Residential - Med. Density	P / Public
NR-3 / Neighborhood Residential - High Density	AD / Airport District
AR / Agricultural Residential	PUD / Planned Unit Development
	X / Exempt



Cheyenne and Laramie County GIS Cooperative



Attachment 2: Land Use Map UDC-21-00046

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

- | | | |
|--------------------|------------------------------|--------------------------------------|
| Nov19_CityLimits | Agriculture/Rural | Mixed-Use Commercial Activity Center |
| Interstate | Rural Residential | Community/Regional Activity Center |
| Principal Arterial | Urban Transition Residential | Community Park Site |
| Minor Arterial | Urban Residential | Highway Corridor Gateway |
| Major Collector | Mixed-use Residential | Urban Service Boundary |
| Minor Collector | Mixed-use Commercial | Natural/Cultural Resource Area |
| Local | Mixed-use Employment | State Lands |
| Private | Industrial | |
| Platted not built | Central Business District | |
| | Community Business | |
| | Public and Quasi-Public | |
| | Military/Federal | |
| | Open Space and Parks | |

Planning and Development: Zoning Map Amendment Application

Submission date: **11 February 2021, 1:45PM**

Receipt number: **8**

Related form version: **9**

General Information

Applicant Name: **The Commonwealth Companies c/o Daryn Murphy**

Applicant Address: **2301 NW Thurman Street, Suite E**

Applicant City: **Portland**

Applicant State: **OR**

Applicant Zip Code: **97210**

Applicant Phone: **503-956-2970**

Applicant Email: **d.murphy@commonwealthco.net**

Representative Name: **Steil Surveying Services**

Representative Address: **1102 W 19th St**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82001**

Representative Phone: **307-634-7273**

Representative Email: **CPalma@SteilSurvey.com**

Owner Name: **CREI WETTSTEIN LLC c/o Daryn Murphy, The Commonwealth Companies**

Owner Address: **PO BOX 1658**

Owner City:	Fond Du Lac
Owner State:	WI
Owner Zip Code:	54936
Owner Phone:	503-956-2970
Owner Email:	d.murphy@commonwealthco.net
Who is the primary contact regarding this application?	Representative
Letter of Authorization	missionvillageannex_loa-app_112020-signed.pdf
Project Location (Street Address or General Location):	North of 4310 DELL RANGE BLVD
Assessor's Parcel ID number(s)	14662240002300
Total Project Area	8,831 SqFt
Existing Zoning	MR - Medium-density Residential Other: (MR) - county
Requested Zoning	MR - Medium-density Residential

Application-Specific Questions

Written Statement	Zone Change for Annexation - convert to City Zone
Zoning Map	SSS20-311_ZC_MissionVillage_110520.pdf
Notification Letter	MissionVillage_Annex2020-BufferList.csv UDC20-493_MissionSenior_Annex_DRAFT_LO-LETTER.docx
Supporting Documents / Information	MissionVillage_SiteMap_110520.pdf

Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.	Acknowledgement of this review criteria
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The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

Acknowledgement of this review criteria

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

Acknowledgement of this review criteria

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

Acknowledgement of this review criteria

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Acknowledgement of this review criteria

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

Acknowledgement of this review criteria

The review and recommendations of other reviewing bodies

Acknowledgement of this review criteria

Whether the application will harm the public health, safety, or general welfare.

Acknowledgement of this review criteria

Signature / Certification

Applicant Signature

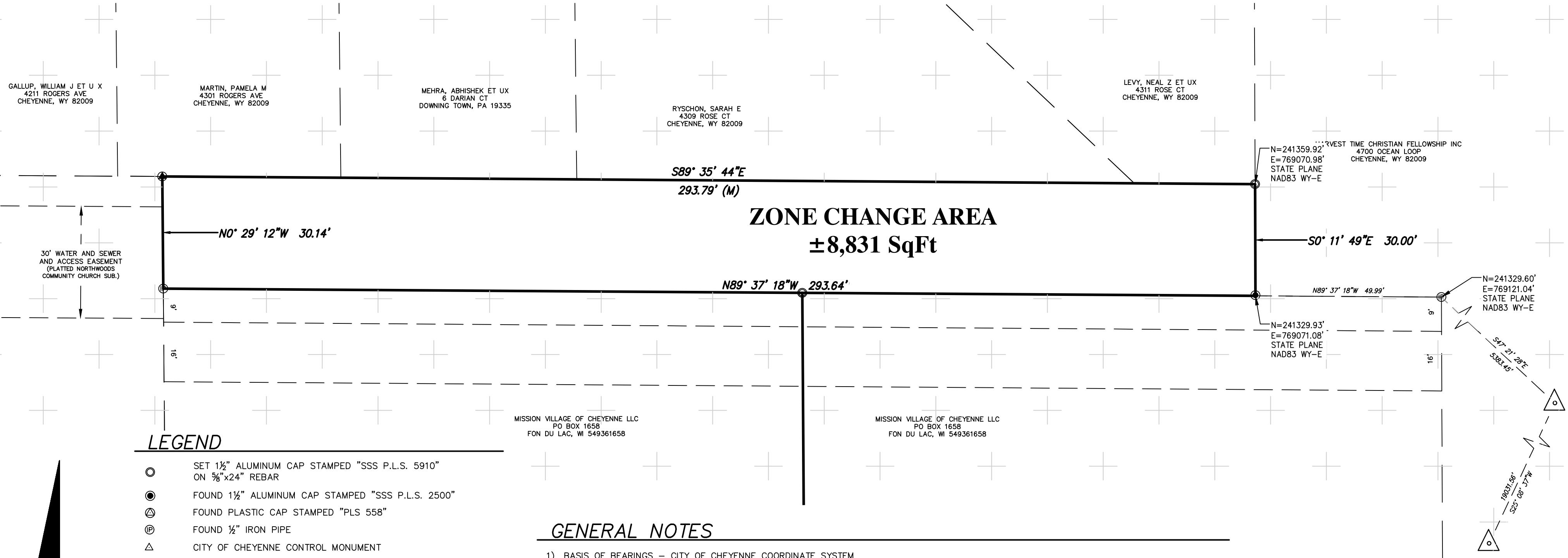
Name of signatory: Casey L. Palma

A handwritten signature in black ink, appearing to read 'Casey L. Palma', with a long horizontal stroke extending to the right.

[Uploaded signature image: CPalma_121218.png](#)

Please enter an email address for an email receipt.

CPalma@SteilSurvey.com



LEGEND

- SET 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON ⅝"x24" REBAR
- FOUND 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 2500"
- ⊙ FOUND PLASTIC CAP STAMPED "PLS 558"
- Ⓟ FOUND ½" IRON PIPE
- △ CITY OF CHEYENNE CONTROL MONUMENT
- (M) DENOTES MEASURED DATA THIS SURVEY
- (R) DENOTES RECORD DATA (PER QUITCLAIM DEED Bk.2522, Pg.616)
- CURRENT CITY OF CHEYENNE INCORPORATED LANDS
- ▨ CURRENTLY UNINCORPORATED LANDS

GENERAL NOTES

- 1) BASIS OF BEARINGS – CITY OF CHEYENNE COORDINATE SYSTEM WYOMING STATE PLANE COORDINATES, EAST ZONE NAD83–2011, SHOWN AS (STATE PLANE NAD83 WY–E); COMBO FACTOR 0.999667183.
- 2) NO PORTION OF THE SUBJECT PROPERTY FALLS WITHIN A F.E.M.A. 100–YEAR SPECIAL FLOOD HAZARD AREA AS SHOWN ON F.I.R.M. PANEL No.56021C1092F DATED JANUARY 17, 2007.
- 3) ALL UNMONUMENTED LOT CORNERS, ANGLE POINTS, AND POINTS OF CURVATURE TO BE MONUMENTED WITH 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON ⅝"x24" REBAR.
- 4) DOMESTIC WATER AND SANITARY SEWER SERVICES TO BE PROVIDED BY CITY OF CHEYENNE BOARD OF PUBLIC UTILITIES (BOPU).
- 5) NEAREST FIRE HYDRANT – ±94' DIRECTLY EAST OF BUILDING ENTRANCE (ON LOT 2, MISSION VILLAGE)
- 6) CURRENTLY INCORPORATED LANDS ABOUT 100% OF THE ±647.6' PARCEL PERIMETER. (WS 15–1–402(B))

ZONING

EXISTING ZONE DISTRICT: MR (COUNTY) MEDIUM–DENSITY RESIDENTIAL
PROPOSED ZONE DISTRICT: MR – MEDIUM–DENSITY RESIDENTIAL

LAND DESCRIPTION

A portion of the SW1/4SE1/4 of Section 22, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, said tract of land being a portion of that road reservation as described in Book 816, Page 94, Laramie County Clerk's Office and being more particularly described as follows:

Beginning at the Northeast Corner of Lot 1, Block 1, Northwoods Community Church Subdivision, from which the Southeast Corner of Section 22 bears S.67° 52' 54" E., a distance of 1785.50 feet; thence S.89° 35' 44" E., along the south line of Park Estates, 3rd Filing, a distance of 293.79 feet to the west line of Park Plaza Tech Center, Replat of Tracts 2 and 3; thence S.00° 11' 49" E., along said west line, a distance of 30.00 feet to the north line of that parcel recorded in Book 2522, Page 616; thence N.89° 37' 18"W., along said north line, a distance of 293.64 feet to the east line Lot 1, Block 1, Northwoods Community Church Subdivision thence N.00° 29' 12" W., along said east line, a distance of 30.14 feet to the Point of Beginning.

Containing 8,831 square feet, more or less.

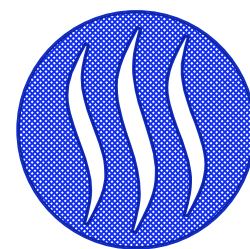
CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, Licensed Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

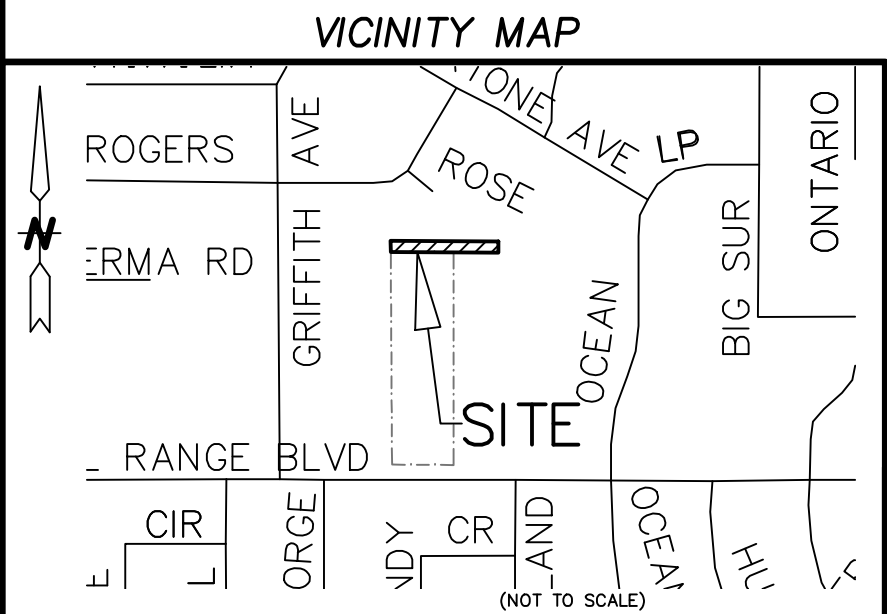
ZONE CHANGE MAP for MISSION VILLAGE SENIOR HOUSING

FOR A PORTION OF SECTION 22,
TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE 6TH P.M.,
LARAMIE COUNTY, WYOMING.

PREPARED February, 2021



STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
1102 WEST 19th ST. CHEYENNE, WY. 82001 • (307) 634-7273
756 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 322-9789
www.SteilSurvey.com • info@SteilSurvey.com



FILING RECORD

2015\DRAWINGS\2020 DWG\2020311 M&A DESIGN MISSION VILLAGE PHASE 2\20–311_17218 CU–ANNEX.dwg

REVISED: 2/22/2021

From: Neal Levy <zelic51@yahoo.com>

Sent: Wednesday, February 17, 2021 2:37 PM

To: CPalma@SteilSurvey.com <CPalma@SteilSurvey.com>; Connor White <cwhite@cheyennecity.org>; Seth Lloyd <slloyd@cheyennecity.org>

Subject: Zone Change Application for Mission Village Sr Housing Access

These are my comments and questions about the re-zoning of the strip of land adjacent to our parcel and Sarah Ryschon's parcel to be used for access to the Mission Village Senior Housing property:

1. Is there not presently an easement allowing entry from Griffith, along the north end of the Northwoods Church property, for service of the electrical lines and cable lines in this area? Will the easement be set aside for this zoning and annexation? How will service personnel now access these utilities?

2. It took more than 12 months for the construction of the existing Mission Village apartments - a year's worth of ceaseless loud noise of construction and construction vehicles beeping in reverse, swirling dirt spread through the neighborhood, a torn up and impassable sidewalk along the Dell Range frontage - and as one walks by even now, it is apparent that a great deal of frontage landscaping has never been completed. The curb view of the collection area and the east side of the property looks like some abandoned industrial drainage pit, and fiber logs still line the driveway and the sidewalk adjacent to Gater Industries. Will this project also take so long, be so loud and prevent walking on Dell Range, and will there be more care taken to actually finish the landscaping and the condition of the frontage?

3. First it was the daily day-long crying and screaming of the Harvest Church daycare kids on their playground right next to and above our privacy fence (an action taken by Harvest without public review or discussion). Then Mission Village was built and we now have 3/4 of a full half-round amphitheater echoing and amplifying noise directly into our back yard, and directly at our back deck, which used to provide quiet, private comfort. Mission Village also includes children who play loudly, and adults who happen to enjoy partying and booming their loud bass from their vehicles in the back parking lot of the apartment on warm nights.

I'm sure those living in the Senior Housing probably won't be adding to the noise, but the construction will undoubtedly

complete the amphitheatric effect, increasing the echoing and direction of more noise to our property. Maybe they can construct an extra-tall wall along the north side of this re-zoned access strip, to mitigate the negative environmental impacts to be suffered by my family, Mrs. Ryschon's family, and the future owners of these adjacent parcels.